

Scrutiny Defects Raised

Diary No : 0710120003362018
Petitioner : M/s Bhushan & Bhushan Ltd
Respondent : M/s Radhika Garments Pvt Ltd.

Serial No.	Description	Comments
1	Whether the petition/application/appeal falls under the territorial jurisdiction of New Delhi/-----Bench of NCLT?	
2	Whether petition/application/appeal/reply and all enclosures are legible and in English language?	
3	Whether petition/application/appeal/reply has been printed in double spacing on one side of standard petition paper with an inner margin of about four centimeter width on top and with a right margin of 2.5cm left margin of 5cm and duly paginated, indexed and stitched together in paper book form?	
4	Whether the relevant provisions of the Companies Act 2013/NCLT rules, 2016 have been clearly mentioned in the petition/application/appeal?	
5	Whether Petitioner/aplication/appellant is entitled to and have the requisite qualification to file the petition e.g. Under section 241 and 242 of the Companies Act, 2013 in accordance with section 244 of the Act & attached documentry proof of entitlement?	
6	Whether the petitioner/application/appeal/reply has been signed at the foot of each page by all the petitioner /applicant/appellant/respondent and their name (s) has also been mentioned?	

7	Whether name of the petitioner/applicant/appellant/respondent complete address viz the name of the road ,street.lane and Municipal Division or Ward Municipal Door and other number of the house; the name of the town or village; the post office, postal district and PIN Code has been mentioned in the petition/application/appeal/reply?	
8	Whether fax number,mobile number, valid email address of the petitioner/applicant/appellant/respondent have been mentioned?	
9	Whether in every interlineations,eraser or correction or deletion in petition/application/appeal/document/reply has been initialed by the party or his authorized representative?	
10	Whether affidavits (Form No NCLT 6) verifying the petition/application/appeal/reply from all the petitioner/applicant/appellant/respondent drawn on non-judicial stamp paper of requisite value duly attested by Notary Public/Oath Commissioner have been filed?	
11	Whether full name,parentage,age,description of each party,date,address and in case a party sues oe being sued in a representative character, has been set out in accordance to rule 20 (5) of NCLT Rules,2016?	
12	Whether petition/application/appeal/reply has been drawn in prescribed form form as per Annexure 'A' of NCLT,Rules,2016 with stipulated fee given in the schedule of these rules? The fee is to be paid by Online	
13	Whether documents accompanied to petition/application/appeal/reply have been duly certified by the authorized representative or advocate filing the petition or application or appeal?	
14	Whether the accompanied documents to the petition/application/appeal/reply has been verified from the originals and are in line with the provisions of Rule 23 NCLT,Rules,2016? The original should be brought before the Deputy Registrar for verification?	

15	Whether petition/application/appeal/reply has been filed in three authenticated copies and delivered to the opposite party?	
16	Whether all relevant enclosures to the petition/application/appeal/reply have been attached as per the annexure 'B' of NCLT rules , 2016?	
17	Whether annexure to the petition /application/appeal/reply has been numbered serially?	
18	Whether Vakalatnama (with enrollment no.) filed , is bearing court fees stamp of Rs. 2.75 P and in accordance with the circular no. 13/rules/DHC dated 26.10.2009 issued by the Registrar General, Delhi High Court?	
19	Whether documents with regard to share holding/paid up capital/ balance sheet of the petitioner/applicant/appeallant have been attached?	
20	Whether notice to be given to the central government along with copy of petition/application/appeal under the relevant provision of the companies act 2013?	
21	Whether proof of service of the petition/application/appeal/reply on the concerned registrar of companies and regional director, Ministry of Corporate Affairs has be filled?	
22	Whether proof of service of the petition/application/appeal/reply on all the respondents as well as caveat or (S) , if any has been filed?	
23	Whether brief of synopsis within two or three pages has been filed?	
24	Whether date of events within two or three pages has been filed	
25		
26		
27	a	
28	Whether the application is complete as per general check list of NCLT issued vide order no.25/2/2016-NCLT dated 28.7.2016.	
29	Whether condition concerning default amount is fulfilled as per section 4 of IBC 2016. The minimum amount is specified at Rs. One lac and the proviso thereto.	

30	Whether the requisite fees i.e. Rs. 2000/- has been paid in favour of Pay and account officers, Ministry of Corporate Affairs, New Delhi through Demand Draft.	
31	Whether operational creditor meets the requirements of section 5 (20) and 5 (21) of IBC 2016.	
32	Whether the matter is within limitation as per the provisions of Limitation Act, 1963.	
33	Whether the application has been filed as per the territorial jurisdiction conferred in section 60 of IBC 2016.	
34	Whether demand notice of unpaid operational debtor copy of an invoice demanding payment of the amount involved in the default to the corporate debtor has been delivered as specified under section 8 (1) of the IBC 2016, in form-3 or 4 (under rule 5 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016).	
35	Whether the operational creditor has not received payment or notice of dispute from the corporate debtor after expiry of period of ten days from date of delivery of the notice or invoice demanding payment.	
36	Whether the application has been filed after 10 days of receipt of demand notice.	
37	Whether the application is in form- 5 duly filled all five parts of the form (under rule 6 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) and accompanied with the fee prescribed under the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	
38	Whether application has been annexed with annexures I to VI as given with form-5 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	
39	Whether the operational creditor has accompanied the application with the following documents:	
40	(a) Copy of the invoice demanding payment or demand notice delivered by the operational creditor to the corporate debtor;	

41	(b) An affidavit to the effect that there is no notice given by the corporate debtor relating to a dispute of the unpaid operational debt;	
42	(c) a copy of the certificate from the financial institutions maintaining accounts of the operational creditor confirming that there is no payment of an unpaid operational debt by the corporate debtor; and	
43	(d) Any other information as may be required to substantiate the case, if any.	
44	Whether operational creditor has proposed resolution professional to act as an interim resolution professional and enclosed form-2 duly signed by proposed resolution professional (under rule 9 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) or an application under section 16 (3) of IBC, 2016.	
45	Whether AA has observed defects in application and issued notice to the applicant to remove the same?	
46	Whether applicant has rectified defects within one week of the date of receipt of such notice from the adjudicating Authority.	
47	Whether the application is complete in following manner:	
48	(a) The application made under section 9 (2) is complete;	
49	(b) There is no repayment of the unpaid operational debt;	
50	(c) The invoice or notice for payment to the corporate debtor has been delivered by the operational creditor;	
51	(d) No notice of dispute has been received by the operational creditor or there is no record of dispute in the information utility; and	
52	(e) There is no disciplinary proceeding pending against any resolution professional proposed under section 9 (4), if any.	
53	Whether the operational creditor has dispatched copy of application filed with adjudicating authority to the registered office of the corporate debtor (under rule 6 (2) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016).	

54	(a) The application made under section 9 (2) is incomplete;	
55	(b) There has been repayment of the unpaid operational debt;	
56	(c) The creditor has not delivered the invoice or notice for payment to the corporate debtor;	
57	(d) Notice of dispute has been received by the operational creditor or there is a record of dispute in the information utility; or	
58	(e) Any disciplinary proceeding is pending against any proposed resolution professional.	
59	(f) Any other defect observed by AA & communicated to the applicant.	
60	The Adjudicating Authority on finding application complete in all respect shall, within fourteen days of the receipt of the application by an order admit the application and communicate such decision to the operational creditor and the corporate debtor.	
61	Within 14 days of admission of the application AA has to appoint IRP as proposed and if not proposed AA has to refer the matter to IBBI for recommending the name of IRP. Registry has to send the communication immediately to IBBI.	
62	The IBBI has to recommend the name of IRP within 10 days from reference made to it and on receiving the reference from IBBI, the registry has to place the same before the Bench immediately for appointing the IRP.	
63	Every correspondence received from Committee Of Creditors/IRP/RP is required to be placed before the Bench immediately	